

HISTORICAL UNDERPINNINGS OF THE INDIAN CONSTITUTION

ABHISHA AI by Abhishek Pathak

UPSC PRELIMS 2026



I. COMPANY RULE (1773-1858)

REGULATING ACT 1773



(Warren Hastings)

- Gov-Gen of Bengal (GGB)
- Executive Council of 4
- Supreme Court at Calcutta
- Control over Company



PITT'S INDIA ACT 1784

System of Double Govt

- Board of Control – Political
- Court of Directors – Commercial



CHARTER ACTS



1813

- EIC Monopoly ended (except Tea & China Trade)
- Education grant



1833

- GGB becomes Gov-Gen of India (GGI) (Bentinck)
- Centralization
- Attempt at Civil Services



1853

- Legislative/Executive split
- Open Civil Service Competition

II. CROWN RULE (1858-1947)

INDIAN COUNCILS ACTS

1861

- Representative institutions
- Decentralization (Bombay/Madras powers)
- Portfolio system
- Ordinance power

1892

- Indirect Elections
- Council size increased
- Discussion on Budget



1909

(Morley-Minto)

- Communal Separate Electorates for Muslims
- Non-official majority in provinces

GOVERNMENT OF INDIA ACTS

1919

(Montagu-Chelmsford)

- Dyarchy in Provinces (Transferred/Reserved subjects)
- Central Bicameral Legislature



1935

- All-India Federation proposed
- Dyarchy at Center
- Provincial Autonomy
- Bicameralism in 6 provinces
- Federal Court

III. TOWARDS INDEPENDENCE (1940s)

CRIPPS MISSION (1942)

- Dominion Status proposed
- Constitution-making body
- Rejected



CABINET MISSION PLAN (1946)



- Rejected separate states
- Suggested 3-tier structure
- Constituent Assembly plan

IV. MAKING THE CONSTITUTION & ADOPTION

CONSTITUENT ASSEMBLY

- Indirectly elected
- First Meeting Dec 9, 1946
- Composition (389 members, later 299)
- 1st Meeting Dec 9, 1946

DRAFTING COMMITTEE & DR. B.R. AMBEDKAR



Portrait of Ambedkar
Chairman

- "Architect of Indian Constitution."
- Key role in drafting

MAJOR COMMITTEES & CHAIRMEN

- Union Powers Committee (J. Nehru)
- Union Constitution Committee (J. Nehru)
- States Committee (Negotiating with States) (J. Nehru)
- Rules of Procedure Committee (Rajendra Prasad)
- Steering Committee (Rajendra Prasad)
- Drafting Committee (Dr. B.R. Ambedkar)
- Provincial Constitution Committee (Sardar Patel)
- Advisory Committee on FRs, Minorities, etc. (Sardar Patel)

SOURCES OF THE CONSTITUTION



ADOPTION & ENFORCEMENT

- Date: 26 November 1949 (Adopted)
- 26 January 1950 (Enforced - Republic Day)
- 26 Jan 1930 significance (Purna Swaraj declaration, Lahore Session INC)

UPSC PRELIMS 2026: INDIAN CONSTITUTIONAL FRAMEWORK & KEY CONCEPTS

SALIENT FEATURES OF THE INDIAN CONSTITUTION

- WRITTEN CONSTITUTION (Longest, detailed)
- BLEND OF RIGIDITY & FLEXIBILITY
- FEDERAL SYSTEM WITH UNITARY BIAS
- PARLIAMENTARY FORM OF GOVERNMENT
- SYNTHESIS OF PARLIAMENTARY SOVEREIGNTY & JUDICIAL SUPREMACY
- INTEGRATED & INDEPENDENT JUDICIARY
- FUNDAMENTAL RIGHTS & DUTIES
- DIRECTIVE PRINCIPLES (DPSP)
- SECULAR STATE
- SINGLE CITIZENSHIP
- UNIVERSAL ADULT FRANCHISE
- EMERGENCY PROVISIONS



FEDERAL vs UNITARY FEATURES



FEDERAL FEATURES

- Two Governments
- Division of Powers (7th Schedule)
- Written Constitution
- Supremacy of Constitution
- Independent Judiciary
- Bicameralism (Rajya Sabha)



UNITARY FEATURES

- Strong Centre
- Single Constitution
- Single Citizenship
- Flexibility of Constitution
- All India Services
- Emergency Provisions
- Appointment of Governor by Centre



PARLIAMENTARY FORM OF GOVERNMENT

- PRESENCE OF NOMINAL (President) & REAL EXECUTIVES (PM)
- MAJORITY PARTY RULE
- COLLECTIVE RESPONSIBILITY (of Executive to Legislature - Lok Sabha)
- MEMBERSHIP OF MINISTERS IN THE LEGISLATURE
- LEADERSHIP OF THE PRIME MINISTER
- ...
- DISSOLUTION OF THE LOWER HOUSE



BASIC STRUCTURE DOCTRINE

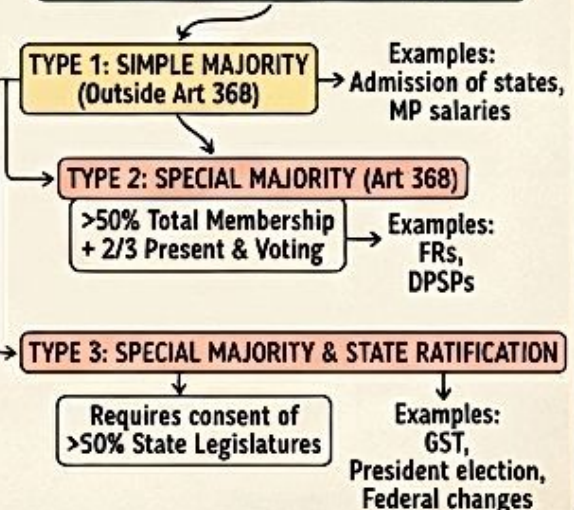
ORIGIN: Kesavananda Bharati Case (1973)

- Supremacy of the Constitution
- Republican and Democratic form of Government
- Separation of Powers
- Federalism
- Unity and Integrity of the Nation
- Free and Fair Elections



Basic Structure

PROCEDURE OF CONSTITUTIONAL AMENDMENT (Art. 368)



IMPORTANT CONSTITUTIONAL AMENDMENTS (CAAs)

- 42nd CAA (1976) ("Mini Constitution") → Added Secular, Socialist, Integrity in Preamble
→ Added Part IV-A (Fundamental Duties)
- 44th CAA (1978) → Right to Property made legal right (removed FR)
→ Replaced Internal Disturbance with Armed Rebellion for Emergency
- 73rd & 74th CAAs (1992) → Constitutional status to Panchayats (Part IX) & Municipalities (Part IX-A)
- 86th CAA (2002) → Right to Education made FR (Art 21A)
- 101st CAA (2016) → Goods and Services Tax (GST)



ALL 12 SCHEDULES - KEY PROVISIONS

Schedule 1: States & territories
Sch 2: Emoluments (Pres, Govs)
Sch 3: Oaths & Affirmations
Sch 4: Rajya Sabha Seat Allocation
Sch 5: Scheduled Areas
Sch 6: Tribal Areas (Assam, Meghalaya, etc)
Sch 7: Lists (Union, State, Concurrent)
Sch 8: Official Languages (22)
Sch 9: Land Reforms (Validating laws)
Sch 10: Anti-Defection Provisions
Sch 11: Panchayats powers
Sch 12: Municipalities powers

PARTS OF THE CONSTITUTION AND RELEVANCE

Key Partisssss are by relevance for Prelims.

Key Parts of the Constitution:	
Part I:	The Union & Its Territory (Art 1-4)
Part II:	Citizenship (Art 5-11)
Part III:	Fundamental Rights (Art 12-35)
Part IV:	DPSP (Art 36-51)
Part V:	The Union (Art 52-151)
Part VI:	The States (Art 152-237)
Part IX:	The Panchayats (Art 243-243O)
Part XI:	Center-State Relations (Art 245-263)
Part XV:	Elections (Art 324-329A)
Part XVIII:	Emergency Provisions (Art 352-360)



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UPSC PRELIMS 2026: CONSTITUTIONAL RIGHTS & DUTIES (ARTICLES 12-51)

1. FUNDAMENTAL RIGHTS (PART III, ARTICLES 12-35)



Key Attributes: Justiciable, Negative Obligations (mostly), Establish Political Democracy.

A. SCOPE (Art. 12-13)

Art. 12: 'State' Defined (Govt, Parliament, State Legis., Local Auth., Statutory bodies);
Art. 13: Laws Inconsistent with FRs are Void (Basis of Judicial Review).

B. SIX CLUSTERS OF RIGHTS

i. RIGHT TO EQUALITY (14-18)

Art. 14: Equality before Law, Equal Protection; Art. 15: Prohibition of Discrimination; Art. 16: Equality of Opportunity in Public Emp.; Art. 17: Abolition of Untouchability; Art. 18: Abolition of Titles.



ii. RIGHT TO FREEDOM (19-22)

Art. 19: Six Freedoms (Speech, Assembly, Association, Movement, Residence, Profession); Art. 20: Protection wrt Conviction; Art. 21: Protection of Life Life & Personal Liberty; Art. 22: Protection against Arrest.

iii. RIGHT AGAINST EXPLOITATION (23-24)

Art. 23: Prohibits Forced Labour & Trafficking;
Art. 24: Prohibits Child Labour in hazardous industries.



iv. RIGHT TO FREEDOM OF RELIGION (25-28)

Art. 25: Freedom of Conscience, Profession, Practice; Art. 26: Manage Religious Affairs; Art. 27: Freedom from Taxes for promoting religion; Art. 28: Religious Instruction in institutions.

v. CULTURAL & EDUCATIONAL RIGHTS (29-30)

Art. 29: Protect Minorities' interests;
Art. 30: Right to establish educational institutions.



vi. RIGHT TO CONSTITUTIONAL REMEDIES (Art. 32)

Dr. Ambedkar: 'Soul of Constitution'. Direct SC approach for FR enforcement.

2. WRITS (ART. 32 & 226)

PREROGATIVE WRITS

- **HABEAS CORPUS:** 'To have the body'. Release unlawfully detained person.
- **MANDAMUS:** 'We Command'. Direct public official to perform duty.
- **PROHIBITION:** 'To forbid'. Higher Court stops Lower Court from exceeding jurisdiction.
- **CERTIORARI:** 'To be certified'. Higher Court quashes Lower Court order.
- **QUO WARRANTO:** 'By what authority'. Prevent illegal usurpation of public office.

3. DIRECTIVE PRINCIPLES OF STATE POLICY (PART IV, ARTICLES 36-51)

Key Attributes: Non-Justiciable, Positive Obligations, Establish Social & Economic Democracy.

A. CLASSIFICATION

- **SOCIALISTIC** (Art. 38, 39, 39A, 41-43)
 - Equal pay for equal work, Right to work, Human conditions.
- **GANDHIAN** (Art. 40, 43, 46, 47)
 - Village Panchayats, Cottage industries, Uplift SC/ST.
- **LIBERAL-INTELLECTUAL** (Art. 44, 45, 50, 51)
 - Uniform Civil Code (44), Separation of Judiciary (50).



4. FUNDAMENTAL DUTIES (PART IV-A, ARTICLE 51A)

- Added by 42nd Amendment (1976), Swaran Singh Committee.
- 11 Duties. Non-Justiciable. Apply to Citizens only.



5. THE EVOLUTION: FR vs. DPSP RELATIONSHIP

Champakam → Golaknath → Kesavananda → Minerva Mills
Dorairajan (FR sacrosanct) (Basic Structure; 25th Amd. 31C partly valid) (Balance between Part III & Part IV)
(FR wins)

Rule: Harmony is Key.



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UPSC PRELIMS 2026: THE EXECUTIVE & JUDICIARY IN INDIA

Key Constitutional Concepts, Roles & Powers

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THE PRESIDENT OF INDIA (HEAD OF STATE)

ELECTION PROCESS



Parliament House



State Assemblies

- ▶ Electoral College: Elected MPs (LS+RS), Elected MLAs (States+UTs: Delhi, Puducherry)
- Method: Proportional Representation by Single Transferable Vote (STV)
- Vote Value Calculation (MLA & MP)
- Qualifications & Oath



POWERS & FUNCTIONS



- Ordinance-making Power (Article 123)
- When Parliament not in session.
- Force of law for max 6 months & 6 weeks
- Subject to parliamentary approval.



Veto Powers (Article 111)

- Absolute (Withhold assent)
- Suspensive (Return for reconsideration)
- Pocket (No action).



REMOVAL (IMPEACHMENT - Article 61)



- ▶ Ground: Violation of the Constitution.
- Special Majority (2/3 total membership) in both Houses.



VICE-PRESIDENT (SECOND HIGHEST OFFICE)

ROLE & FUNCTIONS



- Ex-officio Chairman of Rajya Sabha.
- Presides over sessions.
- Cast decides vote in tie.



- Acts as President during vacancy (max 6 months).
- Resigns from VP to contest for President.

ELECTION & REMOVAL



- Electoral College: All MPs (Elected + Nominated). No State MLAs.



- Removal: Resolution passed by Rajya (Effective Majority: majority of then members) & agreed by Lok Sabha (Simple Majority). Not Impeachment.

PRIME MINISTER & COUNCIL OF MINISTERS (REAL EXECUTIVE)

PRIME MINISTER (HEAD OF GOVERNMENT)



- ▶ Appointment by President (usually leader of largest party/coalition).
- Recommends Ministers.

▶ Powers:

- Real decision-making authority.
- Recommends dismissal of Ministers.
- Advises President on various matters.
- Prepares Cabinet decisions.

COUNCIL OF MINISTERS (COM)



Types of Ministers:

- Cabinet Ministers
- Ministers of State (Independent Charge)
- Ministers of State.

Total size limited to 15% of Lok Sabha strength (91st Amendment).

COLLECTIVE RESPONSIBILITY

(Article 75)

- ▶ CoM is collectively responsible to the Lok Sabha.
- ▶ No-confidence motion against one minister can sink entire Council.
- ▶ Secrecy of discussions.



ATTORNEY GENERAL & OTHER TOPICS

ATTORNEY GENERAL OF INDIA (Article 76)



- ▶ Highest legal officer in the country.
- Appointed by President.
- ▶ Qualifications: Same as Supreme Court Judge.
- ▶ Role: Advises Govt on legal matters, represents Govt in SC/HC.

- ▶ Rights: Right to speak & participate in LS, RS, Joint Sittings, Parliamentary Committees (but NO RIGHT TO VOTE).

- ▶ Tenure: Holds office during pleasure of President. (Convention: Resigns with government)

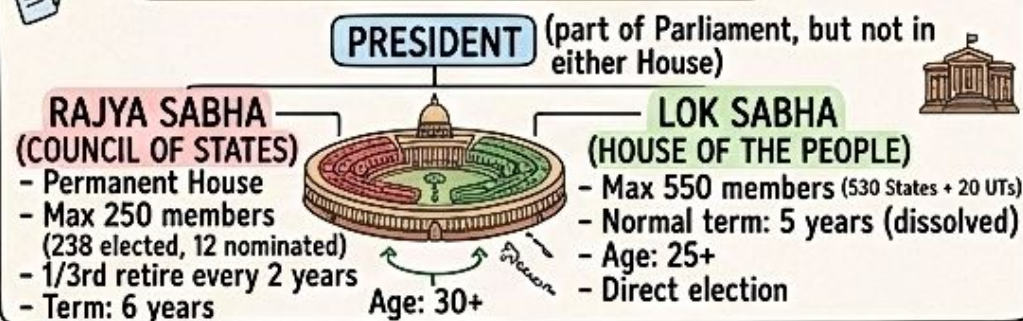
OTHER KEY POINTS

- ▶ Relationship between President & CoM (Art 74)
 - CoM to aid & advise President.
 - President acts on advice (can return for reconsideration ONCE).
- ▶ State Executive differences (Governor).

NOTE: Checks and Balances noted to on all access political preparations

COMPREHENSIVE GUIDE TO INDIAN PARLIAMENT - FOR UPSC PRELIMS 2026

COMPOSITION OF PARLIAMENT



QUALIFICATIONS & DISQUALIFICATIONS (Art. 84 & 102)

QUALIFICATIONS

- Citizen of India
- minimum age (RS:30, LS:25)
- subscribed to an oath

DISQUALIFICATIONS

- Holds office of profit
 - unsound mind
 - undischarged insolvent
 - loses citizenship
- 

TYPES OF BILLS

ORDINARY BILL: Introduced in either House, simple majority

MONEY BILL (Art. 110)

- Introduced in Lok Sabha (LS) on President's recommendation
- Rajya Sabha (RS) has limited powers (14 days)
- Speaker certifies

FINANCIAL BILL (Art. 117)

- Cat. I (similar to Money Bill, LS only)
 - Cat. II (either House, President's rec needed before discussion)
- 

CONSTITUTIONAL AMENDMENT BILL (Art. 368)

- Special majority, either House, NO Joint Sitting

PARLIAMENTARY PROCEDURES

QUESTION HOUR

- 1st hour of every sitting
 - Members ask questions
- 
- 

STARRED → Oral answer, supplementary allowed

UNSTARRED: Written answer, no supplementary



ZERO HOUR

- Informal tool, starts after Question Hour
- to raise urgent matters without prior notice

BUDGET PROCESS (Art. 112)

(Annual Financial Statement)

1. Presentation by Finance Minister
 2. General Discussion
 3. Scrutiny by Departmental Standing Committees
 4. Voting on Demands for Grants (Lok Sabha exclusive)
 5. Passing of Appropriation Bill (for withdrawal of funds)
 6. Passing of Finance Bill (taxation)
- 

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JOINT SITTING (Art. 108)

- To resolve deadlocks. Only for Ordinary and Financial Bills
- Summoned by President, Presided over by Speaker of Lok Sabha
- Decision by Simple Majority of members present and voting

ANTI-DEFECTION LAW

(10th Schedule, 52nd Amendment)

- **GROUND:** Voluntarily gives up party membership, votes against party whip
- **DECIDING AUTHORITY:**
 - Presiding Officer (Speaker/Chairman), subject to Judicial Review
- * **Exceptions:** Mergers with 2/3rd members

PARLIAMENTARY COMMITTEES

- Ad Hoc (Temporary) vs Standing (Permanent) Committees
- Ex:: Departmental Standing Committees
 - Public Accounts Committee (PAC)
 - Estimates Committee, COPU

PRIVILEGES OF PARLIAMENT (Art. 105)

- **Individual Privileges:** Freedom of speech, freedom from arrest (civil, 40 days before/after session)
- **Collective Privileges:** Right to exclude strangers, publish proceedings

STRUCTURE & KEY CONCEPTS: INDIAN JUDICIARY for UPSC PRELIMS 2026

SUPREME COURT OF INDIA (SC)

Composition: 1 Chief Justice + 33 Judges = 34 Total

Tenure: 65 years

Qualifications: Citizen
5 yrs HC Judge or 10 yrs HC Advocate, or
- Distinguished Jurist

Seat: Delhi, but variable by CJI with
President approval



APPOINTMENT OF JUDGES (COLLEGIUM SYSTEM)



President
appoints
Judges

Collegium for SC

CJI +

4 Senior-most Judges

Three Judges Cases
(1981, 1993, 1998)
Evolution toward evolution
towards Judicial Primacy

REMOVAL OF JUDGES (IMPEACHMENT)

Grounds: Proven Misbehaviour or Incapacity

Process: Motion (100 LS / 50 RS members) → Inquiry Committee → Passed by "Special Majority" Majority in both Houses → President's Order

• No SC judge ever impeached



JUDICIAL REVIEW, ACTIVISM & PIL

JUDICIAL REVIEW (Art. 13)

Power to review
constitutionality of
Laws/Orders



JUDICIAL ACTIVISM

Proactive role in
protecting rights &
enforcing duties



PUBLIC INTEREST LITIGATION (PIL)

Relaxed *Locus Standi*
(anyone can file for public
cause)

• Originated with
P.N. Bhagwati Justice



HIGH COURTS & SUBORDINATE COURTS

HIGH COURTS (HC)

Jurisdiction
• Original
• Appellate
• Supervisory

• Original
• Appellate
• Supervisory

Writ Power: **Article 226** - wider
than SC Art. 32

Tenure: 62 years



SUBORDINATE COURTS (Districts)

Headed by District & Sessions Judge
(Appointed by Governor with HC consultation)

Civil
(District Judge)

Criminal
(Sessions Judge - can
give capital punishment,
with HC confirm)



LANDMARK JUDGMENTS & BASIC STRUCTURE DOCTRINE

Basic Structure = Constitutional core cannot be amended (Art. 368)

Shankari Prasad
(1951)

FRs can be
amended

Golaknath
(1967)

FRs cannot be
amended

Kesavananda Bharati
(1973)

MOST IMPORTANT
Basic Structure
introduced

Minerva Mills
(1980)

Reaffirmed
Basic Structure

I.R. Coelho
(2007)

9th Schedule laws
after 1973 are

I.R. Coelho
(2007)

after 1973
are reviewable

Elements

- Supremacy
- Democracy
- Separation of Powers
- Secularism
- Federalism



Basic Structure
Pillars

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UPSC PRELIMS 2026: COMPREHENSIVE GUIDE TO INDIAN POLITY - CENTRAL-STATE RELATIONS & EMERGENCY PROVISIONS

1 LEGISLATIVE RELATIONS

(Art. 245-255)



Making laws



Parliament

- (Whole of India)
- Extra-territorial)

State Legislatures
(State only)

Parliamentary Power in State List:

- National Interest (Art 249)
 - Emergency (Art 250)
 - Consent of States (Art 252)
 - International Agreements (Art 253)
 - President's Rule (Art 356)
- Territory Subject Matter

2 SEVENTH SCHEDULE

UNION LIST (List I)	STATE LIST (List II)	CONCURRENT LIST (List III)
• Defence • Banking • Foreign Affairs	• Police • Health • Agriculture	• Education • Forests • Trade Unions

- Exclusive powers with Union
- Residuary powers with Union

3 ADMINISTRATIVE RELATIONS

(Art. 256-263)



Compliance of State laws with Central laws

Union Directions to States:

- Communications
- Railways
- Primary Education in mother tongue



Art 365: Failure to comply can lead to President's Rule



4 FINANCIAL RELATIONS

(Art. 268-293)

GST Council



- Union 1/3
- States 2/3
- 3/4 majority for decisions



Finance Commission

- Distribution of Net Proceeds of Taxes (Art 280)



Grants-in-aid

- Statutory Art 275
- Discretionary Art 282



5 KEY CONSTITUTIONAL BODIES

FINANCE COMMISSION

(Art 280)

- 5 members
- President appoints
- Recommends tax distribution

GST COUNCIL

(Art 279A)

- Constitutional body
- Union Finance Minister is Chairman
- State Finance Ministers are



- 5 members
- Distribution of Taxes
- Recommends Net proceeds of Taxes



- Constitutional body
- Union Finance Minister is Chairman
- State Finance Ministers are members

6 EMERGENCY PROVISIONS (Part XVIII)

	NATIONAL EMERGENCY (Art 352)	STATE EMERGENCY (PRESIDENT'S RULE, Art 356)	FINANCIAL EMERGENCY (Art 360)
Grounds	National Emergency Grounds	State Emergency	Financial Emergency Grounds
Approval	Both Houses time limits: 1 month	Both Houses limits: 2 months	Time limits: 2 years
Majority	Special	Simple	Special
Max Duration	Indefinite	3 Years	Indefinite
Revocation	Revocation	Indefinite	Revocation
Effects on Fundamental Rights	Effects on Inner Fundamental Rights	Effects on change on Fundamental Rights	Effects on misus matiss, Effects on Fundamental Rights

7 INTER-STATE COUNCIL (Art 263)



President established

President

PM

Chairman

Promotes cooperation

Promotes Cooperation

8 PRESIDENT'S RULE (Art 356)



Grounds (Art 356 & Art 365)

- Consults of President
- Government's rule



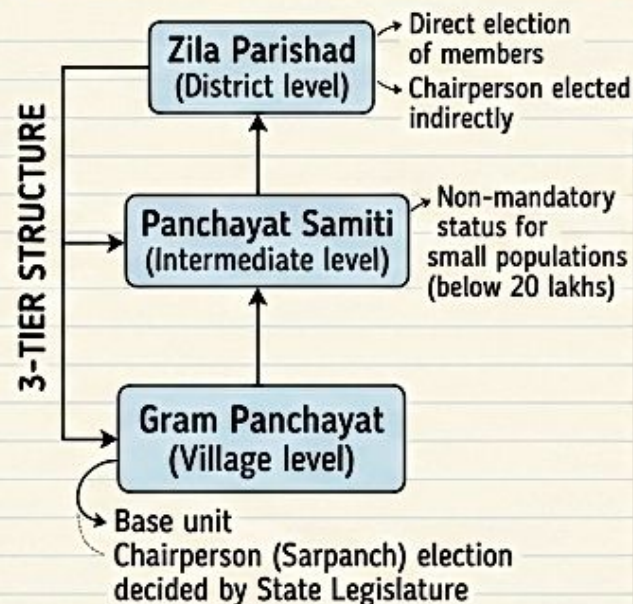
S.R. Bommai Case (1994)

- Guidelines on misuse
- Judicial Review



'LOCAL SELF-GOVERNMENT IN INDIA: PANCHAYATI RAJ & URBAN LOCAL BODIES

1 PANCHAYATI RAJ STRUCTURE (73rd Amendment, 1992)



- Introduced Part IX and 11th Schedule (29 functional items)

2 GRAM SABHA: THE SOUL OF DEMOCRACY (Art. 243A)

- Composition:** All registered voters in the village/Panchayat area.
- Key Powers/Roles** (Determined by State Legislature)
 - Plan/Budget Approval
 - Beneficiary Identification
- SOCIAL AUDITS** (emphasizing accountability in schemes like MGNREGA)
- PESA Act, 1996** role (EICV). Traditional customs/resources safeguarding for emphasis)

QUICK REVISION: PRI vs. ULB

Feature	Panchayati Raj (73 rd)	Municipalities (74 th)
Part	IX	IX-A
Schedule	11 th (29 subjects)	12 th (18 subjects)
Direct Election	Mandatory all members	Mandatory all members
Indirect Election	Chairpersons (Int. & District)	Decided by State Law
Planning Body	DPC (District Plan Comm.)	MPC (Metro Plan Comm.)

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3 STATE ELECTION COMMISSION (SEC) (Art. 243K)

- Mandate:** Superintendence, direction, and control of electoral rolls & **ALL ELECTIONS** to Panchayats & Municipalities.
- Independence** → Governor appoints SEC Commissioner.
 - REMOVAL:** Same grounds & manner as High Court Judge (Proven misbehavior/incapacity, Parliament involved).
- Crucial Note:** Independent of ECI (ECI handles Parliament & State Legislature).

5 URBAN LOCAL BODIES (ULBs) (74th Amendment, 1992)

- Introduced Part IXA and 12th Schedule (18 functional items).
- Types of Municipalities**

Nagar Panchayat	Areas in transition from rural to urban.
Municipal Council	Smaller urban areas.
Municipal Corporation	Large metropolitan areas.
Political Wing	Councillors (directly elected) & MAYOR (ceremonial head).
Executive Wing	MUNICIPAL COMMISSIONER (IAS officer, appointed by State Govt.).

4 STATE FINANCE COMMISSION (SFC) (Art. 243I)

- Constitution:** Governor appoints every **5 YEARS**.
- Key Roles** (Recommendations to Governor)
 - Distribution of Net Proceeds of Taxes (State vs. Local Body).
 - Taxes, duties, tolls to be assigned to Local Bodies.
 - GRANTS-IN-AID** from State Consolidated Fund.
- Linkage:** Central Finance Commission considers SFC recommendations.

6 RESERVATION PROVISIONS (Arts. 243D & 243T)

RESERVATIONS IN LOCAL BODIES		
Category	Provision	Details
SC / ST	Mandatory	In proportion to population in the area.
Women	Mandatory	NOT LESS THAN 1/3 rd of total seats AND Chairperson offices. (Some states 50%).
OBCs	Voluntary	State Legislature <u>may</u> provide.

UPSC Tip: Reservations apply to **BOTH** members **AND** chairpersons at all levels.

CONSTITUTIONAL & NON-CONSTITUTIONAL BODIES: FOR UPSC PRELIMS 2026.

A COMPREHENSIVE STUDY GUIDE

1. CONSTITUTIONAL BODIES (Art. listed in Constitution)



ELECTION COMMISSION OF INDIA (Art. 324)

- Key: Conducts general, state, presidential, VP elections.
- Notes: Chief Election Commissioner, two ECs.



COMPTROLLER AND AUDITOR GENERAL (CAG) (Art. 148)

- Key: "Guardian of the Public Purse."
- Notes: Audits all expenditures of Union & State govts.



UNION PUBLIC SERVICE COMMISSION (UPSC) (Art. 315-323)

- Key: Central recruitment agency for Group A & B services.
- Notes: Advises govt on personnel matters.



FINANCE COMMISSION (Art. 280)

- Key: Recommends distribution of net proceeds of taxes between Union & States.
- Note: Quasi-judicial body, appointed every 5 years.

NATIONAL COMMISSION FOR SCs (Art. 338), STs (Art. 338A), BCs (Art. 338B)

- Key: Safeguard rights & interests of respective communities.
- Notes: Special focus on NCBC (102nd Amendment Act).

KEY COMPARATIVE ANALYSIS FOR PRELIMS

Origin

- Origin in recultion, state, President; 1993
- Amendment int.: Union & Addatey General

Amendment process

- Required for constitutional bodies; involves Article 368.
- Constitutional amendments need a special majority in Parliament and, in some cases, ratification by states.

Stability

- Derived from their constitutional mandate; not subject to executive or
- Tenures and conditions of service are secured by the Constitution.

2. NON-CONSTITUTIONAL BODIES



A. STATUTORY BODIES (Created by Parliament Act)

NATIONAL HUMAN RIGHTS COMMISSION (NHRC)

- Act: Protection of Human Rights Act, 1993
- Key: Investigates human rights violations.

CENTRAL VIGILANCE COMMISSION (CVC)

- Act: CVC Act, 2003
- Key: Addresses corruption in Central govt.

LOKPAL AND LOKAYUKTAS

- Act: Lokpal and Lokayuktas Act, 2013
- Key: Anti-corruption ombudsman for Union & States.

CENTRAL INFORMATION COMMISSION (CIC)

- Act: RTI Act, 2005
- Key: Second appellate authority for RTI matters.

B. EXECUTIVE BODIES (Created by Govt. Order)



NITI AAYOG (Replacing Planning Commission)

- Order: Union Cabinet Resolution, Jan 1, 2015
- Key: Think tank, policy formulator, fosters cooperative federalism. (Not constitutional, not statutory)

Appointment & removal processes

- Precise processes for appointment (e.g., President for CAG) and strict removal criteria (e.g., specific grounds like incapacity).
- Compare removal of CAG (like Supreme Court judge) vs Attorney General (pleasure of President).

Re-appointment rules

- Strict rules against further employment with Central or State government for CAG and
- Exceptions exist; detailed comparison is crucial for Prelims.



COMPREHENSIVE GOVERNANCE NOTEBOOK: RIGHT TO INFORMATION ACT TO WHISTLEBLOWER PROTECTION

RIGHT TO INFORMATION (RTI) ACT, 2005

- ▶ **SUNSHINE LAW**, Derived from Article 19(1)(a)
- ▶ **KEY TIMELINES**: Normal (30 Days), Life/Liberty (48 Hours), Through Asst. PIO (35 Days)
- ▶ **SECTION 4**: MANDATES SUO MOTU (PROACTIVE) DISCLOSURE
- ▶ **EXEMPTIONS (SECTION 8)**: Security, Sovereignty, Strategic Interests, Cabinet Papers (pre-decision)
- ▶ **RTI AMENDMENT 2019**: CG sets TENURE, SALARY, SERVICE CONDITIONS of Information Commissioners.

E-GOVERNANCE INITIATIVES (2026 FOCUS)

- ▶ **AHORIBBI**
- ▶ **BHASHINI**: AI-LED LANGUAGE TRANSLATION for local dialects
- ▶ **DIGITAL INDIA 2.0**: 5G/6G ready infra, 'BROADBAND FOR ALL' (BharatNet)
- ▶ **DIGILOCKER**: Paperless governance, legally equivalent under IT Rules
- ▶ **PM-WANI**: Public Wi-Fi Access Network Interface
- ▶ **JAN VISHWAS ACT**: DECRIMINALIZING minor offenses.

CITIZEN'S CHARTER (CC)

- ▶ **NON-JUSTICIABLE COMMITMENT** to service standards
- ▶ **6 PRINCIPLES**: Quality, Choice, Standards, Value, Accountability
- ▶ **COMPONENTS**: Vision/Mission, Service details, Grievance Redressal, Citizen expectations
- ▶ **SEVOTTAM MODEL**: Standard-setting model for excellence.

SOCIAL AUDIT



COMMUNITIES



ACCOUNTABILITY MECHANISMS

- ▶ **VERTICAL**: Elections (Political accountability)
 - MGNREGA: 1ST STATUTORY AUDIT (SECTION 17)
- ▶ **HORIZONTAL**: INSTITUTIONAL CHECKS (CAG, Judiciary, CVC)
- ▶ **SOCIAL**: RTI, Citizen Charters, Public Hearings (Jan Sunwai).

WHISTLEBLOWER PROTECTION

- ▶ **WHISTLEBLOWERS PROTECTION ACT, 2014**
- ▶ **MECHANISM FOR COMPLAINTS** on corruption/misuse of power
- ▶ **COMPETENT AUTHORITY**: Central Vigilance Commission (CVC)
- ▶ **ANONYMITY MANDATORY** for complainant identity
- ▶ **2015 AMENDMENT BILL** sought aligning exemptions with RTI (Section 8).

1. THE GOLDEN TRIANGLE (ARTS. 14, 19, 21)



INTERCONNECTED RIGHTS



ARTICLE 14:

EQUALITY BEFORE LAW & EQUAL PROTECTION OF LAWS.

Equality Before Law (UK - Negative): No one is above law.

Equal Protection (US - Positive): Likes treated alike.



ARTICLE 19:

SIX FREEDOMS & REASONABLE RESTRICTIONS.

- Freedom of Speech, Assembly, Association, Movement, Residence, Profession.

- Restrictions:** Sovereignty, Public Order, Morality (Must be Reasonable)



ARTICLE 21:

RIGHT TO LIFE & PERSONAL LIBERTY.

Due Process

(Maneka Gandhi case)

→ Broader than Procedure Established by Law.

→ Includes Right to Privacy, Clean Env, Education



2. ARTICLE 32: CONSTITUTIONAL REMEDIES.



HEART & SOUL (Ambedkar)



FIVE WRITS

HABEAS CORPUS
(To have body, against illegal detention)

MANDAMUS
(We command, to public officials)

PROHIBITION
(Stop lower court exceeding jurisdiction)

CERTIORARI
(Quash lower court order)

QUO-WARRANTO
(By what authority, public office title)

3. ARTICLE 368: AMENDING THE CONSTITUTION.



POWER TO AMEND VS. BASIC STRUCTURE

Parliament can amend, **BUT cannot destroy 'Basic Structure'** (Kesavananda Bharati Case, 1973).



1. SIMPLE MAJORITY (e.g., admitting states, not under 368)

2. SPECIAL MAJORITY (2/3 present & voting + 50% total strength)

3. SPECIAL MAJORITY + STATE RATIFICATION (Required for Federal Features, e.g., GST)

4. EMERGENCY PROVISIONS (ARTS. 352-360)

NATIONAL EMERGENCY (352)

War, External Aggression, Armed Rebellion. (1 month, Special Majority).

PRESIDENT'S RULE (356)

Failure of Const. Machinery in State. (2 months, Simple Majority).

FINANCIAL EMERGENCY (360)

Threat to Financial Stability. (2 months, Simple Majority).

5. CENTRE-STATE RELATIONS.



DIVISION OF POWERS

LEGISLATIVE
(Art 245-255):

- 7th Schedule Lists. (Union, State, Concurrent).
- Parl can legislate on State List (Arts 249, 250, 253).

ADMINISTRATIVE
(Art 256-263):

Inter-State Councils (Art 263).

FINANCIAL
(Art 264-293):

Finance Comm (Art 280), GST Council (Art 279A).



QUICK STRATEGY: Link Articles, Inter-State Disputes, Preambular Ideals.

UPSC PRELIMS 2026: CONSTITUTIONAL & LEGAL SNAPSHOTS

1. CHIEF ELECTION COMMISSIONER (CEC)



REMOVAL MECHANISM & DEBATE



★ **Constitutional Basis:** Article 324(5). **PRELIMS POINTER:** Article number

📖 **Removal Process (CEC):** Removed in the same manner and grounds as an SC Judge. **PRELIMS POINTER:** Special Majority required

📖 **Recent Debate (2026):**



Attempt to move a removal motion against CEC Gyanesh Kumar, ultimately declined by the Speaker/Chairman.

📖 **The Asymmetry:** Critics argue that ECs should also have parliamentary protection like the CEC to ensure independence from executive/CEC pressure.

CEC & EC: TENURE, POWERS & IMMUNITY

★ **Tenure:** 6 years or age 65 (whichever is earlier). **PRELIMS POINTER**

★ **Salary/Status:** Equivalent to Cabinet Secretary (CEC & Other ECs Act, 2023). **PRELIMS POINTER:** Change from SC Judge

★ **Immunity:** No specific "judicial-style" immunity, but protected from liability for actions in good faith during official duties.

★ **Powers:** Superintendence, direction, and control of elections (MCC enforcement, symbol allotment). **PRELIMS POINTER:** RP Acts 1950 & 1951

2. CHIEF JUSTICE OF INDIA (CJI)



REMOVAL MECHANISM



★ **Constitutional Basis:** Article 124(4) and Judges (Inquiry) Act, 1968. **PRELIMS POINTER**

📖 **Removal Procedure:**

1. **Notice:** Signed by 100 members (LS) or 50 members (RS).
2. **Admission:** Discretion of Speaker/Chairman to admit/refuse.
3. **Inquiry:** 3-member committee (SC Judge, HC Chief Justice, Distinguished Jurist).
4. **Voting:** Special Majority required in each House

PRELIMS POINTER: Majority of total membership + 2/3rd of members present and voting

5. **Presidential Order:** Issuance of removal order.

CJI: TENURE, POWERS & IMMUNITY

★ **Tenure:** Up to the age of 65 years. **PRELIMS POINTER**

★ **Immunity:** Judicially acting persons are not liable to be sued in Civil Court (Judicial Officers Protection Act, 1850).

★ **Powers:**

- ↳ **Master of the Roster:** Constitute benches and allocate cases. **PRELIMS POINTER:** Exclusive power
- ↳ **Administrative:** Heads Registry, appoints staff.
- ↳ **Collegium:** Heads 5-member collegium for SC appointments. **PRELIMS POINTER**

3. EUTHANASIA: PASSIVE vs. ACTIVE



HARISH RANA vs. UOI (2026) & KEY ASPECTS

Feature	Passive Euthanasia (Legal in India)	Active Euthanasia (Illegal)
Action	Withholding/withdrawing life-sustaining treatment (e.g., ventilator, feeding tubes).	Positive act (e.g., lethal injection).
Result	Patient dies a natural death.	Physician causes death directly.
Legal Basis	<i>Common Cause vs. UOI</i> (2018) - Part of Art. 21.	Culpable homicide/murder PRELIMS POINTER: Article 21 Interpretation

HARISH RANA vs. UOI (2026) JUDGMENT

- ★ **The Case:** First-ever judicially sanctioned order for passive euthanasia for Harish Rana in PVS for over 12 years.
- 📖 **Clinically Assisted Nutrition & Hydration (CANH):** Court ruled it constitutes "medical treatment" and can be withdrawn.
- ★ **Substituted Judgment Standard:** Court determined what the patient would have wanted, based on their best interests.

KEY ASPECTS OF EUTHANASIA (for Prelims)

1. **Article 21:** "Right to die with dignity" is a fundamental right.
2. **Living Will (Advance Medical Directive):** Individuals can record wishes in advance. **PRELIMS POINTER**
3. **Two-Tier Medical Board (2023 Rules):** Primary Medical Board and Secondary Medical Board (hospital-level) must both concur. **PRELIMS POINTER:** Simplified process